

25STCV34972 25STCV34972

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV34972 Hearing Date: September 3, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:33 PM on September 2, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on September 2, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

This

is a Lemon Law action based on an Engine Defect.

Defendant

American Honda Motor Co., Inc. moves for judgment on the pleadings as to the Complaint.

TENTATIVE RULING

Defendant

American Honda Motor Co., Inc.'s motion for judgment on the pleadings as to the Complaint is GRANTED with leave to amend as to the first through fifth causes of action.

Plaintiff is given 30 days' leave to amend.

ANALYSIS

Meet and Confer

The

Declaration of Andrew S. Gahan reflects that Defendant's counsel sent a meet and confer letter but does not indicate whether any meet and confer occurred. The Court will deem the meet and confer letter as having satisfied the obligation set forth in Code Civ. Proc. § 439.

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

On a motion for judgment on the pleadings, the same rules applicable on demurrer apply. (County of Orange v. Association of Orange County Deputy Sheriffs (2011) 192 Cal.App.4th 21, 32-33.) Defendant American Honda Motor Co., Inc. moves for judgment on the pleadings as to the Complaint as follows:

1. First

Cause of Action (Violation of Civil Code § 1793.2(d)); Second Cause of Action (Violation of Civil Code § 1793.2(b).); Third Cause of Action (Violation of Civil Code § 1793.2(a)(3).); Fourth Cause of Action (Breach of the Implied Warranty of Merchantability—Civ. Code § 1791.1; § 1794; § 1795.5)

Defendant

argues that the Plaintiff's Complaint fails to identify any specific defect in the Subject Vehicle and does not allege a single defect that failed to be repaired after two service visits, thereby lacking any factual support for any of the asserted causes of action.

"[S]tatutory causes of action must be pleaded with particularity." (Covenant Care, Inc. v. Superior Court (2004) 32 Cal.4th 771, 790.) The Court agrees with Defendant that Plaintiff must plead more facts regarding the dates of the repair visits, the specific problems which manifested, and how the various Song-Beverly provisions were violated relative to those problems and repair attempts.

The motion for judgment on the pleadings as to the first through fourth causes of action is GRANTED with leave to amend.

2. Fifth Cause of Action (Fraudulent Inducement – Concealment).

Defendant argues that this cause of action does not plead the elements of fraud with the requisite specificity. The Court agrees.

Civil Code § 1710(3)(deceit is defined to include "[t]he suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact. . . .") (bold emphasis added).

In a misleading half-truth situation, where the defendant undertakes to provide some information, the defendant is "obliged to disclose all other facts which 'materially qualify' the limited facts disclosed. (Citations omitted.)" (Randi W. v. Muroc Joint Unified School Dist. (1997) 14 Cal.4th 1066, 1082.)

[T]he elements of a cause of action for fraud based on concealment are: " '(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed

or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. [Citation.]' [Citation.]" (Citation omitted.)

(Kaldenbach v. Mutual of Omaha Life Ins. Co.
(2009) 178 Cal.App.4th 830, 850.)

"There are 'four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]' " (Citations omitted.) Where, as here, there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in "some sort of transaction between the parties. [Citations.] Thus, a duty to disclose may arise from the relationship between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.]" (Citation omitted.)

(OCM Principal Opportunities Fund, L.P. v. CIBC
World Markets Corp. (2007) 157 Cal.App.4th 835, 859 [bold emphasis added].)

The Complaint
alleges at ¶ 50:

50. Plaintiff

is a reasonable consumer who interacted with sales representatives, considered Defendant HONDA's advertisement, and/or other marketing materials concerning HONDA Vehicles prior to purchasing Subject Vehicle. Had Defendant HONDA and its dealership(s) revealed the Transmission Defect in these disclosures, Plaintiff would have been aware of it and would not have purchased Subject Vehicle.

More specificity is required as to when Plaintiff was exposed to Defendant's marketing/advertising materials and exactly what statements were made in the materials upon which Plaintiff actually relied. Plaintiff must allege statements upon which he actually relied which would constitute, at the very least, half-truths if not outright misrepresentations as to the transmission of the subject vehicle, and actual reliance upon such statements.

As such, there are insufficient facts
pled to give rise to a duty to disclose on behalf of Defendant.

The Court notes,
however, that relationship between the manufacturer of medical devices in *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, cited by Defendant for the proposition that there is an insufficient transactional relationship, is different than the relationship between a car manufacturer and a car buyer. In *Bigler-Engler*, the evidence did not show that the manufacturer directly advertised its products to consumers, nor that it derived any monetary benefit directly from the consumer's rental of the medical device. (Id. at 314.)

To the extent that the court in *Dhital v. Nissan N. Am. Inc.* (2022) 84 Cal.App.5th 828, 844 held that less specific allegations were sufficient at the pleading stage, the California Supreme Court has recently reiterated that the specificity requirement applies to fraudulent concealment claims:

As an additional point, Robinson emphasized California's pleading requirement that fraud must be alleged with specificity. The requirement provides an important safeguard against the risk of tort recovery for fraud in every case involving conduct occurring during a contractual relationship. (Robinson, *supra*, 34 Cal.4th at p. 993.) When affirmative misrepresentation fraud is alleged, ""This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.'"" (Ibid.; see *Hills Trans. Co. v. Southwest Forest Industries, Inc.* (1968) 266 Cal.App.2d 702, 707 [72 Cal. Rptr. 441].) Uber argues that, because a fraudulent concealment claim "concerns a defendant's alleged failure to speak," the pleading standard is necessarily more relaxed, thus weakening this safeguard. Not so.

California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 347 [134 Cal. Rptr. 375, 556 P.2d 737]; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 [129 Cal. Rptr. 3d 874]; *Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1472 [169 Cal. Rptr. 3d 619].) For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing

a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff] ... are insufficient for the foregoing purposes." (Goodman, at p. 347.)

(Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43-44 [bold emphasis and underlining added].)

This ground
is persuasive.

Defendant
also argues that this cause of action is barred by the economic loss doctrine.

The Complaint alleges:

48. Specifically, Defendant HONDA knew that the 9-speed transmission had one or more defects that can result in (1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering; (5) surging and/or inability to control the vehicle's speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module ("TCM") and/or powertrain control module ("PCM"), (7) failure or replacement of the transmission ("Transmission Defect"). These conditions present a safety hazard and are unreasonably dangerous to consumers because they can suddenly and unexpectedly cause the driver to be unable to control the speed and acceleration/deceleration of the vehicle. Such unexpected inability to control the vehicle's speed and acceleration/deceleration thereby, exposes Plaintiff and passengers (along with other drivers who share the road or garage with Plaintiff) to a serious risk of accident and injury.

(Complaint, ¶ 48 [bold emphasis added].)

This exposes Plaintiff to the risk of

injuring other persons, and exposing Plaintiff to liability to third parties. These facts would bring Plaintiff's claims outside the economic loss rule for fraud which exposes the plaintiff to liability to third parties, as recognized in *Robinson Helicopter* and its progeny. The alleged fraud exposes Plaintiff to causing harm to third persons as a result of driving a vehicle with an undisclosed defect. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 326-29.

Because the application of the economic loss doctrine to plaintiffs' fraud cause of action depends on our interpretation of the California Supreme Court's recent decision in *Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979 [22 Cal. Rptr. 3d 352, 102 P.3d 268] (*Robinson*), we turn to this question first.

Robinson was a breach of contract and fraud action.

Dana and Robinson had contracted for Dana to supply a part for Robinson's helicopters. Their contract required the part to be manufactured to certain specifications and prohibited changes to the manufacturing process without approval. When it delivered the parts, Dana provided Robinson with certificates required by the Federal Aviation Administration (FAA). These certificates asserted that the parts had been manufactured to the requisite specifications. (*Robinson Helicopter Co. v. Dana Corp.*, supra, 34 Cal.4th at pp. 985–986.) After a couple of years, Dana changed its manufacturing process so that the parts did not meet Robinson's specifications and did not comport with the required certificates. However, Dana continued to supply the required certificates and did not tell Robinson about the change. (*Id.* at p. 986.) After more than a year [*327] of supplying the nonconforming parts, Dana switched back to the original manufacturing process that met the required specifications. It did not notify Robinson of this change either. (*Ibid.*)

Eventually, Robinson's helicopters began to experience a high failure rate for this part. (*Robinson Helicopter Co. v. Dana Corp.*, supra, 34 Cal.4th at p. 986.) It was only after Robinson complained to Dana about the high failure rate that Dana disclosed that the parts were nonconforming. (*Id.* at pp. 986–987.) The defective parts did not cause any physical injury to person, property or other components of the helicopters. However, Robinson was required to recall and replace the nonconforming parts. And Dana was not very cooperative in providing the information necessary to identify the nonconforming parts so that they could be rapidly replaced. (*Ibid.*) Robinson incurred more than \$ 1.5 million in expenses for replacement parts and employee time spent investigating the matter, identifying the nonconforming parts and replacing them. (*Id.* at p. 987.)

The jury found that Dana had breached its contract with Robinson, breached the warranties, and committed fraud. (Robinson Helicopter Co. v. Dana Corp., *supra*, 34 Cal.4th at pp. 987–988.) It awarded Robinson nearly all of its claimed expenses as compensatory damages and also awarded Robinson \$ 6 million in punitive damages. (Id. at p. 987.) The Court of Appeal held that Robinson had no tort action (and therefore could not recover punitive damages) because it had suffered only economic loss. (Id. at p. 988.) The California Supreme Court granted review to decide that issue. (Ibid.)

The court held that Dana's provision of false certificates of conformance supported a cause of action for fraud even absent physical injury. (Robinson Helicopter Co. v. Dana Corp., *supra*, 34 Cal.4th at p. 988.) Initially, the court noted that the economic loss rule was intended to separate contract from tort. (Ibid.) “ [T]he economic loss rule allows a plaintiff to recover in strict products liability in tort when a product defect causes damage to “other property”, that is, property other than the product itself. The law of contractual warranty governs damage to the product itself.” (Id. at p. 989.)

Robinson claimed that its fraud cause of action was permitted because it arose independently from the contract breach: the contract was breached by the supply of nonconforming parts; the fraud was providing false certificates claiming that the parts conformed. (Robinson Helicopter Co. v. Dana Corp., *supra*, 34 Cal.4th at p. 989.) Dana argued that its fraud was not independent of the breach of contract. (Id. at p. 992.) The court concluded that, because Robinson had relied on the certificates and its lack of knowledge of the nonconformity had led to economic loss and exposed Robinson to liability if [*328] any of the affected helicopters failed and caused physical injury, the fraud was “independent” of the breach. (Id. at pp. 990–991.)

The court then reasoned that the economic loss rule did not bar Robinson's fraud cause of action “because [the fraud cause of action was] independent of Dana's breach of contract.” (Robinson Helicopter Co. v. Dana Corp., *supra*, 34 Cal.4th at p. 991, *italics added*.) “ ‘Because of the extra measure of blameworthiness inhering in fraud, and because in fraud cases we are not concerned about the need for “predictability about the cost of contractual relationships,” ... fraud plaintiffs may recover “out-of-pocket” damages in addition to benefit-of-the bargain damages.’ ” (Id. at p. 992, *citation omitted*.)

“ ‘... [a] party to a contract cannot rationally calculate the possibility that the other party will deliberately misrepresent terms critical

to that contract.' ... No rational party would enter into a contract anticipating that they are or will be lied to. 'While parties, perhaps because of their technical expertise and sophistication, can be presumed to understand and allocate the risks relating to negligent product design or manufacture, those same parties cannot, and should not, be expected to anticipate fraud and dishonesty in every transaction.' ... Dana's argument therefore proposes to increase the certainty in contractual relationships by encouraging fraudulent conduct at the expense of an innocent party. No public policy supports such an outcome. [¶] Nor do we believe that our decision will open the floodgates to future litigation. Our holding today is narrow in scope and limited to a defendant's affirmative misrepresentations on which a plaintiff relies and which expose a plaintiff to liability for personal damages independent of the plaintiff's economic loss." (Robinson Helicopter Co. v. Dana Corp., supra, 34 Cal.4th at p. 993, citations and fn. omitted.)

The determination of whether the economic loss rule applies to plaintiffs' fraud cause of action depends on whether the California Supreme Court intended in Robinson to obviate the application of the economic loss rule to all intentional affirmative fraud causes of action where the fraud exposes the plaintiff to liability or the court intended to provide a narrow exception to the economic loss rule that applies only where that fraud cause of action also accompanies, but is independent of, a breach of contract cause of action. We believe that the California Supreme Court's decision in Robinson precludes the application of the economic loss rule to any intentional affirmative fraud action where the plaintiff can establish that the fraud exposed the plaintiff to liability.

The structure of the Robinson opinion supports this conclusion. The first part of the Robinson opinion was concerned with whether Dana's wrongful conduct constituted tortious conduct, not whether the economic loss rule [*329] applied to it. It was only after the court held that Dana's conduct was a tort independent of Dana's breach of contract that the court addressed the application of the economic loss rule. (Robinson Helicopter Co. v. Dana Corp., supra, 34 Cal.4th at p. 991.) The analysis that followed suggested that fraud itself is immune from application of the economic loss rule because fraud is particularly blameworthy and therefore unlike both contract causes of action and products liability causes of action. Although the court suggested that its decision was a narrow one, its explicit limits did not exclude a fraud cause of action such as the one pleaded by plaintiffs.

Here, plaintiffs alleged that defendants' affirmative misrepresentations about the dangers of low-level lead exposure, upon which they

justifiably relied, had caused plaintiffs to fail to make timely efforts to prevent and treat low-level lead exposure. The delay in instituting prevention and treatment caused more people to be exposed and increased the cost of treatment for those who had been exposed or continued to be exposed. In addition, plaintiffs, as the owners of numerous buildings containing unremediated lead, continued to expose people to low levels of lead that plaintiffs believed were not harmful due to defendants' misrepresentations. These people who were exposed to low levels of lead in plaintiffs' buildings may hold plaintiffs liable for the permanent damage to their bodies that no amount of prevention or treatment can now completely remediate. Thus, plaintiffs' potential liability to these people is independent of the economic harm to plaintiffs from the additional costs of prevention and treatment. Accordingly, we conclude that the economic loss doctrine does not apply to plaintiffs' fraud cause of action, and we proceed to address whether defendants established that plaintiffs' fraud cause of action had accrued more than three years prior to the March 2000 filing of the original complaint. (Code Civ. Proc., § 338, subd. (d) [three-year limitations period for fraud].)

(County of Santa Clara v. Atlantic Richfield Co.
(2006) 137 Cal.App.4th 292, 326-29 [bold emphasis and underlining added].)

The Supreme Court recently reaffirmed that exposure to risk of harm beyond the reasonable contemplation of the parties is an essential element:

Therefore, we have reformed the question as follows (Cal. Rules of Court, rule 8.548(f)(5)): Can a plaintiff assert an independent claim of fraudulent concealment in the performance of a contract? The answer to this question is also yes. A plaintiff may assert a tort claim for fraudulent concealment based on conduct occurring in the course of a contractual relationship, if the elements of the cause of action can be established independently of the parties' contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the agreement.

(Rattagan v. Uber Techs., Inc. (2024) 17 Cal.5th 1, 39
[bold emphasis and underlining added].)

This ground
is not persuasive.

For

the reasons set forth earlier above, however, the motion for judgment on the pleadings as to the fifth cause of action is GRANTED with leave to amend.

Plaintiff

is given 30 days' leave to amend.